

Civil Rights Complaints Processing

Policy: Local agency staff members are required to understand the procedures for processing civil rights complaints.

Regulations: 7 CFR 246.8, FNS Instructions 113-1

Procedure/Additional Guidance:

Specific procedures for local agency handling of all civil rights complaints follow:

- **Right to File a Complaint:** Any person alleging discrimination based on race, color, national origin, sex, age, or disability has a right to file a complaint within 180 days of the alleged discriminatory action. (Under special circumstances this 180-day time limit may be extended by the Office of Adjudication and Compliance.) Complaints received after 180 days should also be investigated and resolved.
- **Acceptance:** Local and State WIC staff must accept all written and verbal Civil Rights complaints and instruct complainants on how to file a complaint. In addition, Civil Rights complaints must be documented in the Customer Service Log in Compass. Staff must check the "Civil Rights" check box and complete the "Referred To" drop-down box within the screen, noting whether the complaint was forwarded to the director/supervisor, state office, or USDA. A copy of the civil rights complaint must be forwarded to the Colorado WIC Program Civil Rights Coordinator within 2 days of initial report and to the USDA within 5 days of initial report. Complainants may choose to submit complaint forms themselves. All of the required information must be collected so that USDA is able to determine validity of the complaint, and to contact the person with a reply. Note that all forms or letters must be signed by the complainant or authorized representative.
- **Complaint Filing:** Complainants or their authorized representative should be directed to complete the [USDA Program Discrimination Complaint Form](#) found online at <https://www.usda.gov/oascr/how-to-file-a-program-discrimination-complaint> or at any USDA office, or call (866) 632-9992 to request the form. They may also write a letter containing all of the information requested in the form (see copy of form in this section). The completed, signed complaint form or letter may be mailed, faxed, or emailed to USDA at the addresses below:

Mail

U.S. Department of Agriculture
Office of the Assistant Secretary for Civil Rights
1400 Independence Avenue, SW
Washington, DC 20250-9410

Fax

(202) 690-7442

E-mail

program.intake@usda.gov

For help filling out the form, instruct the complainant to call any of these telephone numbers:

(202) 260-1026 Local area
(866) 632-9992 Toll-free Customer Service
(800) 877-8339 Local or Federal relay
(800) 845-6136 Spanish relay
(866) 377-8642 Relay voice users

- **Verbal Complaints:** In the event a complainant makes verbal allegations, such as through a phone conversation, and is not inclined to place the allegations in writing, the person's name to which the allegations are made and the details of the complaint shall be documented in the *Compass Customer Service Log Description* text box. Every effort must be made to collect sufficient information and to reread the statement back to the complainant to verify completeness and accuracy of the information recorded. The complainant is instructed on how to file a complaint with USDA.

- **Tracking Complaints:** Once a complaint is documented, immediate and appropriate follow up is required. Staff member documents the follow up plan in the *Compass Customer Service Log Resolution* text box. Follow up can include any of the following actions:
 - ✓ Local agency WIC Director is notified of the complaint.
 - ✓ Local agency WIC Director meets with local staff to develop a plan for corrective action as needed.
 - ✓ Local agency WIC Director consults with State Nutrition Consultant, Retailer Coordinator, and/or Civil Rights Coordinator to develop a plan for corrective action (e.g., staff training on customer service, policy clarification, staff monitoring).
 - ✓ When State Office staff receive the complaint, the CO WIC Nutrition Consultant and/or Civil Rights Coordinator contacts the local agency WIC Director to discuss the complaint and appropriate follow up.
- **Follow-up Plan:** Staff documents the follow-up plan in the *Compass Customer Service Log Resolution* text box. Additional follow-up or documentation may be entered by editing the original record. Once the complaint has been resolved, WIC staff should close the record by recording the date in the *Closed Date* field.

If USDA determines the local agency to be noncompliant, the plan for corrective action and follow-up activities should be tracked on a Civil Rights Complaint Tracking Log (WIC #81) and entered into the *Compass Customer Service Log Resolution* text box. Documenting follow up on the tracking form and in Compass enables WIC staff to track problems, as well as identify any repeated occurrences. The USDA will notify the state office within 90 days when an agency is found in non-compliance. Once 90 days has passed the *Compass Customer Service Log "Closed Date"* may be noted, however no earlier than 90 days from date the complaint was sent to USDA. State and local agencies must keep records of Civil Rights complaints in a Civil Rights file. Complaints against a retailer must also be kept in the retailer file at both the state and local level.